

3.

CASE #	CASE NAME	HEARING NAME
CVRI2304886	STEVENSON VS TORRES	MOTION TO COMPEL ORDER COMPELLING RESPONSES TO SPECIAL INTERROGATORIES AND FOR MONETARY SANCTIONS IN THE AMOUNT OF \$352.28

Tentative Ruling:

The unopposed motion is granted. Plaintiff Capucine Stevenson is ordered to provide verified responses to the special interrogatories within twenty (20) days of this Court's signed order or notice of ruling, whichever is sooner. Court further imposes a monetary sanction against Plaintiff Capucine Stevenson and counsel of record, jointly and severally, in the amount of \$352.28, to be made payable through defense counsel Keith L. Shoji & Associates within thirty (30) days of service of this Court's signed order or notice of ruling, whichever is sooner.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506366	DOE VS RIVERSIDE UNIFIED SCHOOL DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

First cause of action – negligence

The Government Claims Act is “a comprehensive statutory scheme that sets forth the liabilities and immunities of public entities and public employees for torts.” (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 969, fn. 5.) Under the Act, liability of a public entity may be direct or derivative. (*McCarty v. State of California Dept. of Transp.* (2008) 164 Cal.App.4th 955, 975.)

A public entity such as the District can only be held directly liable for violation of a duty imposed by statute or law. The Act declares that except as otherwise provided by statute, “a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, §815, subd. (a).) This means that “there is no [governmental] entity liability, unless it is established by statute.” (*Bradford v. State of California* (1973) 36 Cal.App.3d 16, 19.) “[T]here is no common law tort liability for public entities in California; such liability is wholly statutory. [Citations.] [Citations.]” (*Ibid.*) As such, the District may only be derivatively or vicariously liable for negligence.